

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 01/30/2026

ALL APPEARANCES WILL BE BY ZOOM

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).) CourtCall will **NOT** be used by D32. Zoom is approved for all hearings except Issue Conferences and Trials.

Dept. 32's telephone number is: (925) 608-1132.

NOTE: In order to minimize the risk of miscommunication, Dept. 32 prefers and encourages email notification to the department of the request to argue and specification of issues to be argued.

Dept. 32's email address is: dept32@contracosta.courts.ca.gov.

Submission of Orders After Hearing in Department 32 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/1613360625?pwd=pSvVmR75t9Q2H5zOgagi9rbG4xeTUM.1>

Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C23-02605
CASE NAME: TALWINDER KAHLON VS. RICHARD FONG, JR.
HEARING IN RE: MOTION FOR HEARING ON MAIN ISSUE OF THE COMPLAINT
FILED BY:
TENTATIVE RULING:

Before the Court is Plaintiff Talwinder Singh Kahlon's Motion for Hearing on Main Issue of the Complaint.

Plaintiff's Motion is **denied** as outlined below.

Procedural Background

Plaintiff filed his complaint on October 20, 2023. Defendant Pinole Station Homeowners Association filed its own motion for judgment on the pleadings on April 12, 2024. The other defendants joined in that motion. The Court granted the MJOP on August 16, 2024. Plaintiff was granted leave to amend and was ordered to file any amended complaint by 4:00 p.m. on August 30, 2024.

Plaintiff never filed an amended complaint. On October 11, 2024, Defendant Pinole Station filed a motion for entry of judgment based on Plaintiff's failure to file an amended complaint. The other defendants joined the motion. The Court granted the motion on February 14, 2025. Judgment in Favor of Defendants and Against Plaintiff was entered on March 5, 2025. Notice of Entry of the Judgment was filed and served on March 21, 2025.

Thereafter, on June 2, 2025, Plaintiff filed three separate motions essentially requesting that the Court reconsider its earlier ruling. The Court denied all the motions making clear that it did not have jurisdiction to reconsider the order given the entry of judgment. On October 2, 2025, Plaintiff filed the instant motion. This motion is the fourth Plaintiff has filed in the trial court to reconsider its March 5, 2025, order of Judgment in Favor of Defendants and against Plaintiff as to all causes of action. Plaintiff has also filed a notice of appeal on October 21, 2025, indicating that he was appealing the judgment as well as the later orders.

Analysis

While styled as a "Motion for Hearing on Main Issue of the Complaint...", Plaintiff's motion is essentially a motion for reconsideration. As the Court has previously, on more than one occasion, stated:

"Motions to reconsider must be filed within 10 days of notice of entry of order and must be based on new facts and/or law. (CCP section 1008.) Plaintiffs motion is untimely and not based on new facts or new law. Moreover, '[a] court may reconsider its order granting or denying a motion and may even reconsider or alter its judgment so long as judgment as not been entered. Once judgment has been entered, however, the court may not reconsider it and loses its unrestricted power to change the judgment.'" (Passavanti v. Williams (1990) 225 Cal.App.3d 1602, 1606.)

As judgment has already been entered, the Court is without jurisdiction to reconsider its earlier order.

In addition, since entry of those orders, Plaintiff has filed a notice of appeal relating to the judgment and the Court's earlier orders.

"[T]he perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order...." (Cal. Code Civ. Proc. § 916 (a); *Varian Med. Systems, Inc. v. Delfino* (2005) 35 Cal4th 180, 189.) An appeal is "perfected" when a notice of appeal is timely filed. (*Kroger Co. v. Workers' Comp. Appeals Bd.* (2012) 210 Cal.App.4th 952, 959.) A stay on appeal from an appealable order deprives the trial court of jurisdiction to adjudicate a motion for reconsideration of that order, because the motion for reconsideration is not collateral to the appealed order. (*Young v. Tri-City Healthcare Dist.* (2012) 210 Cal.App.4th 35, 51-53.)

Plaintiff's filing of the notice of appeal further emphasizes that the Court does not have jurisdiction to reconsider its earlier ruling.

Sanctions

Repeated attempts to relitigate claims that have been finally determined can lead the Court to deem the Plaintiff a vexatious litigant. (Cal. Code Civ. Proc. § 391 (b)(2).) In addition, the filing of frivolous and meritless motions can lead to Plaintiff being sanctioned. (See e.g. Cal. Code Civ. Proc. §§ 128.5, 128.7.) The court cautions Plaintiff not to relitigate claims that have been finally determined, and not to file frivolous and meritless motions. Plaintiff has filed the same motion four times. This order marks the fourth time the court has denied a motion by the Plaintiff asking the trial court to rescind, reconsider, reverse, vacate or in any way revisit its March 5, 2025, order of Judgment in Favor of Defendants and against Plaintiff as to all causes of action.

Conclusion

Plaintiff's motion is **denied**.

2. 9:00 AM CASE NUMBER: C23-02761
CASE NAME: SUNPOINT PUBLIC ADJUSTERS, INC. VS. GARY JOHNSON
***HEARING ON MOTION IN RE: TO STRIKE 2ND AMENDED CROSS-COMPLAINT**
FILED BY: SUNPOINT PUBLIC ADJUSTERS, INC.
TENTATIVE RULING:

The Court on its own motion continues the hearing to Feb 6, 2025 at 9:00 am in Dept. 32.

3. 9:00 AM CASE NUMBER: C23-02761
CASE NAME: SUNPOINT PUBLIC ADJUSTERS, INC. VS. GARY JOHNSON
HEARING ON DEMURRER TO: TO 2ND AMENDED CROSS-COMPLAINT
FILED BY: SUNPOINT PUBLIC ADJUSTERS, INC.
TENTATIVE RULING:

The Court on its own motion continues the hearing to Feb 6, 2025 at 9:00 am in Dept. 32